

*Declaration And Contract
Of Trust*

THIS DOCUMENT
IS TO BE INTERPRETED AND EXECUTED
UNDER THE RIGHT OF CONTRACT LAW
WITH THE ORIGINAL SITUS IN THE

**STATE REPUBLIC WITHIN THE
UNINCORPORATED REPUBLIC OF THE
UNITED STATES OF AMERICA.**

THIS INDENTURE AUTHORIZES
IT'S TRUSTEE
TO PERFORM UNDER THE NAME

NAME OF TRUST

(PRIVATE IRREVOCABLE EXPRESS TRUST UNDER COMMON-LAW)

NAME OF TRUST

DECLARATION OF CONTRACT AND INDENTURE

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NAME OF YOUR TRUST

DECLARATION OF IRREVOCABLE TRUST

Established Month XX, 20XX 00:00 AM

THIS INDENTURE (“Agreement”) made this **XXth day of Month, 20XX** serves as a Declaration of Trust and shall continue for a term of **one hundred (100) years** from this day, between **NAME OF GRANTOR** herein known as the Grantor, and party of the first part, and **NAME OF TRUSTEE**, herein known as the First Trustee, under the name of **NAME OF TRUST**. This Private Contract is made for the purpose of establishing a private contract irrevocable trust under the Common Law, by **NAME OF GRANTOR**, Sui Juris, of The **YOUR STATE** Republic within the unincorporated republic of the United States of America, acting here in as the “Grantor.” With this Agreement, the parties intend to create a private contract express trust to the benefit of the Grantor’s family, heritors, and heirs, hereinafter “Beneficiaries” for the purpose of identifying, accumulating, purchasing and holding all assets that become available and to provide for a prudent administration and distribution system administered by legal persons acting in a fiduciary capacity.

WITNESSETH: Whereas the Grantor, irrevocably assigns and conveys to the Trustee the specific property identified in the attached Schedule A, in exchange for one-hundred (100) TCU, which are to be transferred and held in Trust, for the Beneficiaries, until dissolution and disbursement of said Trust.

WHEREAS, the Trust is authorized to exist and function through its board of trustees, composed of the total active number of trustees, collectively as the Board.

WHEREAS, the Trust shall be amendable, as described in the bylaws, and shall be irrevocable by the Grantor or by any other person or entity. It is the intention of the Grantor to make to the Beneficiaries, an absolute gift of the Trust Certificate Units, in which the Beneficiaries shall not have any vested interest, until the termination of this Trust and final distribution of accumulated assets or any early distribution of the assets thereof. There shall be exactly 100 Trust Certificate Units available to the Beneficiaries.

WHEREAS, The Trust shall be administered, managed, governed and regulated in all respects according to applicable Common Law Jurisdiction of **YOUR STATE** republic as well as the Uniform Trustees Powers Act, and the Constitution of the United States of America, and the Uniform Commercial Code (only when and if applicable and/or allowable to remain under the jurisdiction of the Common Law). The domicile of the trust is within the **YOUR STATE**

REPUBLIC WITHIN THE UNINCORPORATED REPUBLIC OF THE UNITED STATES OF AMERICA.

WHEREAS, The Trustees, in addition to all other powers granted by this Indenture and any subsequent minutes and bylaw, shall be given the following additional powers with respect to the Trust, to be executed from time to time at the discretion of the Trustee:

Management of the Trust

i. To invest and reinvest, lease, rent, mortgage, insure, repair, improve, or sell any of the real and personal property of the Trust as the Trustee deems advisable and to sell, liquidate or continue to operate, at the Trustee's discretion, and corporation, partnership or other business interest which may be received or initiated by the Trust.

Mortgages and Property

ii. To enforce any and all mortgages, pledges and deeds of Trust held by the Trust and to purchase at any sale thereunder, any such real or personal property subject to any mortgage, pledge or deed of trust.

Litigation and Adjustment of Claims

iii. To initiate or defend, at the discretion of the Trustee, any litigation affecting the Trust Estate, and to submit to binding arbitration, to settle, release or adjust, with or without compensation, any and all claims affecting the Trust Estate or Trust Organization.

Attorneys, Advisors, Agents and Managers

iv. To employ and to pay from the Trust Estate, reasonable compensation to such attorneys, accountants, brokers and investment, tax and other advisors as the Trust deems advisable. The Trust may also employ a management company to provide for the preservation and growth of the Trust assets.

IN WITNESS whereof, the parties hereto have executed this agreement on the day and year first written above.

Grantor: **NAME OF GRANTOR**

First Trustee: **NAME OF TRUSTEE**

NOTARY/WITNESS

NAME OF TRUST

BYLAWS

ORGANIZATIONAL PURPOSE AND INTENT

ARTICLE ONE

SECTION 1: The Purpose and intent of this Trust is to maintain and improve this Trust Estate so the Trust Certificate Unit Holders may possess the things of Life sufficient to provide for health, growth, protection, education, expansion, welfare, preservation and continuation and not just simply arrangement to protect and conserve the property for the beneficiaries.

SECTION 2: Any person may add property to this Trust Estate by gift, will, exchange, bill of sale, quit claim, deed or other transfer, with the consent of the Board and with the intent of the property eventually being distributed to the Trust Certificate Unit Holders. The Trust may, at the discretion of the Trustees, make any purchase it deems prudent for its Organizational Purpose.

SECTION 3: It is expressly declared that an unincorporated Private Trust by Contract, otherwise known as Declaration of Irrevocable Trust, or a Pure Trust, is hereby created, and not a living trust, or a partnership or a corporation, or a company, or a joint venture, or a limited partnership, or a limited liability company but a trust as defined by the Internal Revenue Code (IRC).

GRANTOR -TRUSTEE RELATIONSHIP

ARTICLE TWO

SECTION 1: It is against the purpose and intent of this Trust for the income of the Trust to be taxed to the Grantor or Trustee under the Grantor-Trust provisions of the Internal Revenue Code. No Trustee of this Trust shall be deemed a Grantor of this Trust.

SECTION 2: No member of the Board shall possess or use a power of administration in a non fiduciary capacity, nor a power exercisable solely by that Trustee to vest the Trust assets or income in himself, or any other power, the possession or use of which would cause the income of the Trust to be taxed to the First Trustee or to the Grantor.

SECTION 3: The Grantor shall retain no power to control the assets placed in the Trust, consistent with the purpose of keeping the income from being taxed to the Grantor under the Grantor-Trust provisions of the Internal Revenue Code.

SECTION 4: If it is shown that a Grantor-Trustee relationship exists, that Trustee shall immediately resign and a new Trustee assigned.

GENERAL TRUST ADMINISTRATION

ARTICLE THREE

SECTION 1: When the Trust is the holder of a copyright or *copy-written name*, and a Trustee endorses above the copyright or *copy-written name*, for the authorization or the liability on a commercial instrument or agreement, then it shall be understood that such transaction was executed in the official business of **NAME OF TRUST** and not in the private capacity of said Trustee, or in the private capacity of any other individual, or entity.

SECTION 2: Under no circumstances shall the Grantor have any interest in any investment made by the Board, other than such legal interest as would any outside person have to the Trust in the particular transaction.

SECTION 3: The Board of Trustees may purchase from or sell to the Grantor, any property, but always at fair market value and for full consideration.

SECTION 4: The Grantor shall not have the power to reacquire Trust Property, or any part thereof by substituting other property of an equivalent value.

SECTION 5: Funds accruing in the Treasury of the Trust shall constitute the operating funds of the Trust. The Board may sell any Trust assets for the purpose of adding to these funds. The Board shall, as it deems proper and necessary, provide for operating funds through any type of borrowing, either secured or unsecured.

SECTION 6: The Board may also designate any other entity to hold funds or title to Trust property for any purposes necessary to further the intent of the Trust.

SECTION 7: The Board shall pay all mortgages, property taxes, assessments, charges, debts, bills and obligations arising out of the maintenance, operation and administration of the Trust and Estate out of Trust operating funds.

SECTION 8: The Board shall pay for any rent of a property used by the First Trustee if this Trustee uses the property to conduct the business of the Trust, or to administer any business operated by the Trust.

SECTION 9: The Board is further authorized to pay expenses of Trustees, Officers, Executives, Managers and like persons, incurred while on Trust business.

TRUST MANAGEMENT

ARTICLE FOUR

SECTION 1: The Trustee shall, at its discretion, have power in connection with the management and control of the Trust to appoint one of its Trustees, or a qualified non-Trustee, to the position of General Trust Manager (GTM).

SECTION 2: The GTM shall be deemed an Independent Contractor, and not an employee of the Trust.

SECTION 3: The GTM shall be compensated by his or her services, as recorded in any Minute.

SECTION 4: The GTM shall have full authority to manage the Trust including, but not limited to, the routine day-to-day operations, subject to the approval of the Board of Trustees.

SECTION 5: The GTM shall have absolute and sole discretionary power over this organization, its assets and earnings, and day-to-day operations.

SECTION 6: The Trustee shall hold all management duties and responsibilities in the event that the office of GTM is not assigned.

NUMBER AND TENURE OF TRUSTEES

ARTICLE FIVE

SECTION 1: The number of Trustees comprising the Board of Trustees shall not be less than one (1) in number and may be increased for practical reasons beneficial to this Trust Organization.

SECTION 2: Upon a Trustee's appointment to an office of Trustee, tenure shall be assigned and maintained in the order upon which they are duly appointed, such as First Trustee, Second Trustee, Third Trustee, and so on, and each Trustee shall maintain such appointed office for their entire duration on the Board of Trustees regardless of any vacancy by any senior Trustee.

SECTION 3: The Trustees hereafter mentioned by name, or any and all other successor Trustees appointed to fill any vacancies, shall hold office and have and exercise collectively the exclusive management and control of this Trust Organization's properties and lawful business affairs, without the consent of any of the TCU Holders thereof, and yet, to the TCU Holders benefit just the same.

TRUSTEE POWERS

ARTICLE SIX

SECTION 1: Where is not otherwise prohibited by law the Trustee(s) shall have general common law powers over the trust estate herein, and may do anything any citizen may lawfully do in any state or country. Specifically, but not by way of limitation, they shall have all rights, authority and power as follows:

- a. To make a loan with interest to the Trust for any purpose and such transaction shall be entered as a first lien against the Trust Estate which must be repaid, as long as the transaction is recorded in the minutes of the Trust.
- b. To appoint Secondary Trustees and shall increase or decrease the number of Trustees as needed to manage the affairs of the Trust.
- c. To appoint a First Secretary, whose sole duties and powers shall be to serve as a Protector of the interests of the Beneficiaries hereof. The First Secretary shall have the power to remove any Secondary Trustee, upon written notice, so long as said First Secretary shall, appoint a qualified Successor-Trustee, who shall take office at the time of the removal of the removed Successor-Trustee.
- d. To compromise or abandon any claims arising out of, in favor of, or against the company and its trust estate, and the Trustees' good faith decision in that regard shall be binding and conclusive on all parties.
- e. To manage, invest and reinvest the trust estate, or any part thereof, in any kind of property or venture which men of prudence, discretion and intelligence consider for their own account, without being restricted to investments which are ordinarily permitted by law or customarily used for trust funds, and without restrictions as to the duration of this Trust. Specifically included, but not by way of limitation, are real estate collectables, gems, art works, precious metals, corporate obligations of every kind, preferred and common stock, commodities, mutual funds and trust funds.
- f. To open, maintain, or close bank accounts as necessary to receive and hold and/or to purchase or sell, in trust, any financial property for the use and benefit of the Beneficiaries.
- g. To sell at public or private sale for cash, credit, or both, and upon such terms and conditions as the Trustees may deem proper.
- h. To sell, grant, convey, mortgage, option, rent, lease or pledge all trust estate assets~. real, personal or mixed, in such a manner as deemed appropriate.
- i. To borrow on or encumber the trust estate without restriction, and to make loans with or without security. All borrowed funds shall immediately become a part of the trust estate.
- j. To allocate capital gains and/or dividends to trust principal as may be deemed appropriate or advantageous to the trust estate.
- k. To register company property in the name of the company, a fictitious trade name of the company, a Trustee or nominee so long as company ownership of such property can be clearly demonstrated.
- l. To make distributions in cash or in kind and to assign values to such property according to the Trustees' best judgment.
- m. To accept additions to the trust estate by deed, will, assignment, exchange, gift, grant, insurance proceeds or any other methods deemed acceptable to the Trustees. The Trustees are further authorized to honor any buy-sell agreements extant as to any property or interest held in trust.
- n. To elect and remunerate officers from the Board or elsewhere as deemed appropriate or expedient. To hire and remunerate employees, agents or contractors. To incur and pay the ordinary and necessary expenses of administration, including, but not limited to, legal fees, accountant's fees, Trustee fees, brokerage fees, consulting fees and the like, and to allocate all the expenses and receipts between principal and income as the Trustee shall deem proper.

- o. To give proxies, to deposit securities with and transfer title to committees representing securities holders and to participate in voting trusts, reorganizations and other transactions involving the common interest of security holders.
- p. To open margin accounts with securities firms and commodities traders and to buy, write or trade in options, commodities, and to make short sales. The Trustees shall be empowered to hold securities in their own names, the name of a nominee, in street name, or unregistered in such condition that ownership will pass. The Trustees shall incur no liability to the company for any loss. Further, any securities firm or commodities trader may rely on this document and the trust provisions herein in respect of a Trustee authority without making further inquiry.
- q. To hold, manage and operate any company property, or business or enterprise. The profits and losses, if any therefrom, shall be chargeable respectively to the trust estate.
- r. To pay all taxes out of the trust estate where taxes are required by law, and to have complete discretion, power and authority to make any decisions or elections that would effectively minimize such taxes.
- s. The Trustee may expressly delegate one or more of their powers to any other person or persons as may be deemed expedient for the management of company affairs, and may revoke such delegation at any time by written notice delivered to such persons.
- t. The Trustees by a majority vote, may change the domicile of the company with or without cause if they deem such change will protect or benefit the trust estate.
- u. The Trustees, by unanimous vote, may make amendments to this contract and declaration, and take such other consequential actions as; they deem necessary or appropriate to protect the integrity of the Trust and to insure the Trust will continue to function and be administered in the best interest of certificate holders and in the manner intended.
- v. The Trustees, by majority vote, may at any time and at their sole discretion wind up company affairs, terminate this Trust and make distributions of the trust estate to certificate holders as provided herein.

COMPENSATION OF TRUSTEES AND OTHERS

ARTICLE SEVEN

SECTION 1: The Board of Trustees shall set and pay compensation of all of this Trust Organization's officers, agents, contractors, or clients, at their discretion.

SECTION 2: The Board of Trustees may pay themselves such reasonable compensation for their services as may be determined by the Board of Trustees' resolution and the appropriate Trust Minute entry thereafter.

ACCEPTANCE BY TRUSTEES

ARTICLE EIGHT

SECTION 1: The first Trustee, for himself and all subsequent Trustees, and successor Trustees, by accepting the appointment as Trustee of this Trust causes all present and future Trustees to agree to the following:

- a. The acceptance of the initial gift or conveyance of property on behalf of the Trust and acknowledge the delivery of all property specified on Schedule "A".
- b. The acceptance and agreement to conduct the Trust affairs in good faith, in conformity with the terms and conditions set forth in this contract and its inherent trust provisions.
- c. The agreement to exercise their best judgment and discretion to conserve and improve the property of the trust estate in accordance with decisions of the Board of Trustees as set forth in the Trust Minutes.
- d. The agreement to, upon final liquidation of the trust estate, to distribute the assets to the existing certificate holders as their contingent rights; may appear.

RESIGNATION AND REMOVAL OF TRUSTEES OR OFFICERS

ARTICLE NINE

SECTION 1: Any Trustee, Trust Manager or Trust Officer may resign from their duties with the Trust by appropriately providing 30 days written notice.

SECTION 2: Secondary Trustee may be removed from office for gross neglect of duty.

- a. Removal is done by the unanimous vote of the other Trustees.
- b. By mandate of court when guilty of fraud, theft, malfeasance in office, or other legal cause;

SECTION 3: In the event of death, resignation, or removal from office of any Trustee, the Board of Trustees shall, by unanimous vote, either appoint a Successor Trustee, or reduce the number of Trustees by one.

SECTION 4: If there is no Trustee left to vote for a Successor-Trustee, the Beneficiaries may apply to a court of competent jurisdiction to appoint a new First Trustee, who shall have the power to appoint other Trustees.

SECTION 5: Any new Trustee shall abide by the original Trust Contract, and shall not dissolve, terminate or impact the day-to-day operations of the Trust.

ANNUAL AND SPECIAL MEETINGS

ARTICLE TEN

SECTION 1: The Trustee shall provide for an annual meeting. Special meetings may be called by one or more Trustees upon three (3) days notice. This is in the event that there are other board members of Trust.

SECTION 2: A majority of all the Board shall constitute a quorum for conducting business at any meeting.

SECTION 3: Meetings may be held anywhere in the world. The Trust would pay for any and all expenses connected with a meeting.

SECTION 4: Participation and voting at any meeting may be done by telephone, internet, or other electronic means, including email and text messaging, as well as physical presence, as long as any such voting is recorded in the minutes.

SECTION 5: Any actions taken on behalf of the Trust shall require a unanimous vote of those present.

LIMITED LIABILITY OF TRUSTEES

ARTICLE ELEVEN

SECTION 1: The Trustee(s) shall, in their capacity as the Board, assume or incur only such liability as shall attach to the Trust assets.

SECTION 2: This liability shall not jeopardize their personal holdings or accounts and they shall be reimbursed by the Trust for any losses they should suffer for any reason while providing services as a Trustee to the Trust.

SECTION 3: No Trustee, created by this Indenture, shall ever be held liable for any action or default of any Trustee, or any other person in connection with the administration and management of this Trust unless caused by the individual's own gross negligence or by commission of a willful act of breach of trust.

SECTION 4: No liability accrues for any loss or expense suffered by the Trust Estate, except such loss or expense as is occasioned by gross negligence such as deliberately acting to undo the financial structure, behavior akin to one who is drunk, or irresponsible, unlawful, or immoral conduct by the Trustee leaving a negative impact on the Trust Estate.

SECTION 5: No liability accrues for any depreciation to the value of assets or other losses caused by any investments made, provided the Trustees act in good faith in making such investments.

SECTION 6: No liability accrues for any payment or distribution needed in this Indenture that is made in good faith and without notice or knowledge of any change in the conditions or status of any person receiving such payment or distribution.

SECTION 7: No liability accrues to any Trustee for any act or default by any Co-trustee, unless the liability results from that Trustee's own bad faith or gross negligence.

SECTION 8: No liability accrues for any or default in the transaction of Trust business by any agent properly selected by the Trustees to carry out specific duties and needs contained in this Indenture, absent willful default or gross negligence.

SECTION 9: No liability accrues for losses resulting to the Trust Estate from any action taken by the Trustees for any option or advice presented by a consultant or any executive Trustee.

PROTECTOR

ARTICLE TWELVE

SECTION 1: The Board of Trustees appoints the first Protector. The Board of Trustees has the right to choose a succession of at least two Protectors to be on file within the minutes of this Trust Estate. The Board of Trustees reserves the right to set up instructions and standards for choosing succeeding Protectors. The details will be in the minutes.

SECTION 2: The Protector ensures mediation and arbitration. The Protector secures and protects the present and contingent distribution rights of the Trust Certificate Unit Holders. This includes: The overall legal status and holding of Trust property; Actions by its fiduciaries which could be harmful or destructive to the Trust Estate; Actions which might bring discredit on the Trust Group.

SECTION 3: The Protector cannot be subservient or subordinate to any Trustee or family member of the Trustees.

SECTION 4: The Protector can advise the Board of Trustees, should the Trustees so wish.

SECTION 5: The Protector will receive reasonable compensation for this position as agreed between the Board and the Protector.

SECTION 6: The Protector signs a separate agreement that becomes part of this indenture when accepting the position with this Trust.

BENEFICIARIES

ARTICLE THIRTEEN

SECTION 1: The Beneficiaries of this Trust shall be the holders of the UBIs (Units Of Beneficial Interest). There shall always be 100 Trust Beneficial Units in issuance; No more and no less. These UBIs shall be transferred by the Board of Trustees in accordance with the Grantor's wishes. The Grantor or the First Trustee may add any additional Beneficiaries or remove any deceased Beneficiaries.

SECTION 2: No TCU holder shall transfer any rights in any TCUs until and unless such transfer is first approved by the Board of Trustees.

SECTION 3: The number of TCUs held by each Beneficiary as a percentage of the total number of TCUs issued (100) shall also be the percentage such Beneficiary shall be entitled to any Trust

Assets which remain at the termination of this Trust. All rights of any TCU holder terminate upon the death of that holder.

SECTION 4: No Beneficiary may hold title to any of the Trust assets, and shall have no vested interest in any Trust income until the actual termination of this Trust, or its early distribution. Neither the income nor principal of the Trust shall be liable for any personal debts of any Beneficiary.

SECTION 5: No Beneficiary has any management power over the Trust.

SECTION 6: No TCU holder shall have any power to sell, assign, or transfer any of his or her Units except under the procedures as set forth in the Bylaws.

TRANSFER OF TRUST CERTIFICATE UNITS

ARTICLE FOURTEEN

SECTION 1: In accordance with the stated purposes of this Trust, the transfer of TCUs is strictly limited. A TCU Holder may transfer, sell, exchange or give those units to any other person(s), only if the transfer is approved by a unanimous vote by the Board of Trustees, and noted by a written Minute. A new Certificate will be issued to the new TCU Holder. Approval of a legitimate request for a transfer shall not be unreasonably withheld. Approval may be withheld if, in the opinion of the Board of Trustees, the transfer is connected to an attempt to use the TCU as collateral for a loan or in any anticipation of an early termination of the Trust and distribution of the assets.

SECTION 2: Any determination of the Board regarding the approval of a transfer shall be final.

SECTION 3: The death of a TCU Holder terminates his or her interest in any rights to the Trust assets.

SECTION 4: Any Holder may request that the Board of Trustees accept a named successor Holder that will receive the original Holder's TCUs and their associated rights upon his or her death. Such requests shall be considered and such approval will not be unreasonably withheld. Upon transfer of the TCUs, the Board of Trustees shall record the transfer in the records of the Trust and issue new TCUs.

SECTION 5: If no such transfer was approved and recorded in the Minutes, the TCUs will be transferred on a prorated basis among the remaining TCU Holders.

SECTION 6: Inheritance of TCUs. TCUs belong solely to the Holder and not to the marriage partner. TCUs can only pass to a direct descendent of **Name of Ancestor**, or to those no greater distant than the second cousin of **Name of Family**. Those descendants are listed on proper schedules within the records of the Trust Estate documents.

DISTRIBUTION OF INCOME AND ASSETS

ARTICLE FIFTEEN

SECTION 1: If it is determined by the Board of Trustees that there is income distributable to the Holders of Trust Certificate Units, and/or income taxable to the Trust if this income is not distributed to the Holders, the Board shall distribute a sufficient amount of such income so as to prevent such income from being taxable to the Trust.

SECTION 2: If, after such income distribution, any income remains, it shall be deemed to be principal and allocated to the Trust Assets.

SECTION 3: The Board of Trustees shall make an annual determination of the existence of distributable income.

SECTION 4: Income shall be distributed only in the same ratio as the number of TCUs held by each holder.

SECTION 5: Any TCU Holder may apply to the Board of Trustees for an advance towards future distributions of both income and principal. The Board may consider such applications based upon emergency circumstances relating to the health, education, or maintenance of any Holder. Any decision of the Board to distribute or not distribute, or as to the dollar amount of any advance, shall be final.

SECTION 6: The Board, in its discretion, may, at any time, distribute to such Holder any amount which the Board determines is consistent with the purposes and intent of the Trust Indenture and Bylaws, and with respect to the rights of the other TCU Holders.

SECTION 7: Any distributed income shall be charged to the account of the Holder receiving the distribution and deducted from any future distribution of income. If there is not enough future income to cover the distribution, the balance of the amount advances shall be deducted from any Trust assets that were to be distributed to that Holder.

SECTION 8: After the Beneficiary reaches **the age of Thirty (30)**, the Beneficiary becomes eligible for his or her full distribution, unless for serious considerations of the Board of Trustees because of known matters at the time this distribution is delayed.

SECTION 9: **The beneficiaries need to allocate the distribution funds to**

SECTION 10: The Board, may at its discretion, make an annual gift not to exceed \$10,000 to each TCU holder.

SECTION 11: Specific educational opportunities are encouraged in the following areas: **Fill in**

the list of optional educational requirements for beneficiaries) i.e Trade School, Apprenticeship, on the job training, college, university.

SECTION 12: If a Holder entitled to receive income or principal is a minor, an incompetent or a person whom the Trustee decide to be unable to wisely or properly handle funds if paid to him or her directly, the Trustee may make any payments in the Trustees' discretion, in any one or more, or any combination of the following ways:

- a. To the natural Guardian or the legally appointed Guardian, Conservator, or other fiduciary of the person or Estate if the Holder;
- b. To any person or organization providing support for Holder;
- c. By Trustees paying directly for the support of the Holder;
- d. Partial payment directly to the Holder;

CHARITABLE CONTRIBUTIONS

ARTICLE SIXTEEN

SECTION 1: The Holders will be considered first, before any charitable contributions are decided. That is, if a Holder is in need, the Board of Trustees is to take care of that need, using its discretion, before the support of charitable organizations.

SECTION 2: It is the intent of the Grantor that charities and the spirit of charitableness be encouraged. To that end, the Co-trustee(s) of this Trust Estate is authorized to contribute to one or more qualified charitable organizations.

SECTION 3: When this Trust Estate achieves over **\$100,000.00 in assets, or cash flow of greater than \$100,000.00 a year**, the Board of Trustees, at their discretion, is directed to the **Ministry Trust** for the benefit

- I. Shelter, food, clothing
- II. Administrative personnel, Psychological, alternative healing methods and professional care as needed.
- III. Vocational training will be available per their interest, or as recommended by counselors.

RENEWAL OF THE TRUST

ARTICLE SEVENTEEN

SECTION 1: The Board of Trustees shall have the power to renew the Trust for any reasonable term, not to exceed the original term, if it is determined by the Board to be in the best interest of the Beneficiaries and there are no objections. The decision to renew the Trust shall be made between sixty (60) days and one hundred twenty (120) days before the original termination date. Any future renewals shall be handled in the same way as the first renewal.

SECTION 2: If any Beneficiary objects to a renewal, the Board shall distribute to that Beneficiary such portion of the Trust assets as he would have been entitled, in the event that the Trust terminated, and continued the Trust with the remaining Trust assets and Beneficiaries. The TCUs held by the objecting Beneficiary shall be turned into the Trust, and shall be redistributed to the remaining Beneficiaries in equal proportion. Such distribution shall be noted in the Minutes of the Trust.

PRIVACY RIGHTS AND NON-DISCLOSURE

ARTICLE EIGHTEEN

SECTION 1: No officer of this Trust shall disclose to anyone any information pertaining to the Trust Certificate Unit Holders. The Grantor has stated that no one will disclose the identities of any and all TCU Holders.

SECTION 2: To insure this right to privacy, no non-officer of the Trust shall be permitted to view any documents of this Trust except for the “Declaration of Trust” and the “Trust Indenture” sections of the original Trust formation agreement.

SECTION 3: It is stressed and reaffirmed here that in all matters about this Trust Estate the Trustees, officers and others involved in this Trust Estate are bound by the Path of Privacy which they signed. The Oath of Privacy is in full force, and the information mentioned in the Oath of Privacy is considered private and secret must not be revealed to any person outside this Trust Estate; and not even within the Trust Estate to any other Trustee, Officer or Staff Member, unless such person “needs to know” such information for the responsibilities held within this Trust Estate, or any fictitious name, also known as a D.B.A. of this Trust Estate.

SECTION 4: All inquiries may be directed to any of the Trustees or other officers, employees or contractors of the Trust Estate, either individually or collectively, in writing by the inquirer and submitted to the Board of Trustees for processing at the next scheduled meeting of the Board of Trustees.

SECTION 5: No document, record, bank account, or any other written information dealing with the internal affairs, or the operations of this Trust Estate will be disclosed to any third-party, except on formal written approval of the Board of Trustees given at the regular or special meeting of the Board of Trustees as set forth above.

SECTION 6: This indenture and all Trust Estate business is kept private, protected by the Privacy Act of 1974, 5 U.S.C. 552(a), the Fourth and Fifth Amendments to the Constitution for the United States of America, and the common law privacy rights available in the United States of America and every other applicable jurisdiction.

SECTION 7: When people, involved in Trust documents or sensitive materials, are invited to join the Trust Estate, the Board of Trustees must approve of the person before he or she is given an employment agreement, or an independent contract. The basic procedure to follow is:

I. Discussion with the Board of Trustees recorded in the Trust minutes before an offer is made.

II. An offer is made to the prospective person.

III. The Trust Oath of Privacy is agreed to and signed by the prospective person.

IV. An employment agreement or an independent contract agreement signed before the person is given any significant information about the internal workings of the Trust.

AMENDMENTS TO THE TRUST CONTRACT

ARTICLE NINETEEN

SECTION 1: The Board of Trustees shall have the power to amend or modify the Trust Indentures and Bylaws to better carry out the purposes of the Trust, or in order to conform to or comply with any law, rule, regulation or order of any government body, provided, however that any such amendment may not be inconsistent with the original Trust purposes and intent, and not in violation of the fiduciary obligations to the Trust Certificate Unit Holders.

SECTION 2: The Trustees must vote unanimously for any such amendments to pass and take effect.

COPIES AS ORIGINALS

ARTICLE TWENTY

SECTION 1: A copy of this document bearing the seal or signature of a Trustee attesting to the fact the copy is an exact copy of the original, or copies certified by the Executive Secretary as a correct copy, are relied upon as an original document and have the full force and effect of the original document in every respect.

SEVERABILITY CLAUSE

ARTICLE TWENTY ONE

SECTION 1: If any sentence, paragraph, clause, section or provision of this Trust Indenture, Bylaws, or Minutes of this Trust is held to be unenforceable or invalid, it shall not affect any of the remaining provisions.

ACCEPTANCE OF TRUST BYLAWS

ARTICLE TWENTY TWO

In witness whereof, the Grantor hereof and the First Trustee hereof, in the name of the Board, have hereunto set their hands and seals in token of the acceptance of, assent to and covenant to abide by all conditions herein imposed and expressed, this _____ day of **<MONTH> 20XX**.

Grantor: **Name of Grantor**

I, **Name of Trustee**, by signing this Indenture hereby accept on behalf of the Board, the properties given by the Grantor, and accepts the Bylaws, conditions, terms and provisions of this Indenture, the Bylaws, and the Resolutions of the Board of Trustees, which shall serve as the governing instruments of the Trust, and agrees to transfer all beneficial interest and Trust Certificate Units of the Trust to the Beneficiaries in accordance with the Grantors direction.

First Trustee: **Name of Trustee**

JURAT/ACKNOWLEDGMENT

<YOUR STATE>)
)
<COUNTY OR CITY>)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of _____ **20xx**, by _____, who proved to me on the basis of satisfactory evidence to be the man who came before me.

Witness/Notary:

SCHEDULE A

On this day, the Grantor of the **<Name of Trust>** in agreement with the Trust indenture and the Bylaws, hereby gives to the Board of Trustees(s), the following described property, and accepted by the First Trustee and on behalf of the Board.

The following property is to be exchanged for one-hundred (100) units of beneficial interest, hereinafter referred to as Trust Certificate Units, that shall be of an equivalent, and yet, indeterminate value to all parties.

1. **One Dollar Bill (Anything of value, and it doesn't have to be silver or gold)**

As part of the consideration provided, the Grantor agrees that it shall not change this Trust Indenture in any manner; nor shall it reserve or keep any ownership or control over the principal or income of the Trust Estate, nor any power to change in any manner this Trust Indenture or Trust Bylaws.

This list of property is complete and comprehensive and is the written description of those certain properties which were agreed upon between the Grantor and the First trustee at the time of the execution of the Trust Indenture.

Grantor: **<Grantor Name>**

First Trustee: **<Trustee Name>**

JURAT/ACKNOWLEDGMENT

<YOUR STATE>)
)
<COUNTY OR CITY>)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of _____ **20XX**, by _____, who proved to me on the basis of satisfactory evidence to be the man who came before me.

Witness/Notary:

To: Board of Trustees
Name of Trust
PO Box 12345
Orlando, FL [12345]

RE: Grantor's Request to Issue Trust Certificate Units to Beneficiaries.

In accordance with the Agreement, of **NAME OF YOUR TRUST** I am hereby directing the Trustees to assign and transfer (100) Trust Certificate Units to the following Beneficiaries

50 TCU to John-Alex of the Family Doe
50 TCU to Mary-anne of the Family Doe

I would appreciate your immediate attention to this request

Respectfully,

Grantor:

JURAT/ACKNOWLEDGMENT

<YOUR STATE>)
)
<COUNTY OR CITY>)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of
_____, 20xx, by _____, who proved
to me on the basis of satisfactory evidence to be the man who came before me.

Witness/Notary:

SCHEDULE B

Name all the Property in the Trust

SCHEDULE C

Beneficiary Contact Information

Throughout the trust, there are references to certain beneficiaries who will receive anything from a specific bequest of personal property to a portion of the remainder of the estate. Instead of inserting that beneficiary's contact information inside of the trust, the Grantors have assembled the list of beneficiaries' contact information in order to provide a starting point for the Trustees to contact these individuals. Even if a beneficiary's contact information changes and is not updated in the schedule, it is not the Grantors intention to disinherit or change the bequest to that beneficiary unless the bequest in the trust is changed.

Name of Trust (Beneficiary) Established on Month xxth, 2023

SCHEDULE D

Memorandum of Personal Property

To: Board of Trustees

Name of Trust

PO Box 12345

Orlando, FL [12345]

As provided in Name of Trust, I have retained the right to use a memorandum as a way to direct the Trustees as to how to dispose of certain items of personal property. It is desired that the following property be distributed to the following individuals listed below as quickly as possible during the trust administration process upon the termination of the trust. If any listed beneficiary below predeceases me, then the bequest shall lapse, and the item shall be added back to trust estate.

PERSONAL PROPERTY ITEM

BENEFICIARY

CERTIFICATE OF TRUST

1. **Name of Trust.** Name of Trust was created by the Grantor on Month xxth, 2023, and is the document that the Certificate of Trust summarizes for purposes of funding assets into the trust or for any other purpose that requires an identification of the trust and the relevant trust provisions.
2. **Grantors.** The Grantor of the trust is Name of Grantor.
3. **Trustees.** The currently acting Trustees of the trust are Name of Trustee
4. **Address.** The current address of the trust is Address of Trust.
5. **Trust Is Irrevocable.** The Grantor does not have the power to revoke or amend the trust during their lifetimes.
6. **Taxpayer Identification Number.** The taxpayer identification number for the trust is _____.
7. **Declarations Regarding Trust.** The trust is in effect as of the date of the Certificate, and it has not been modified, revoked, or amended in any way so as to make any of these declarations incorrect.
8. **Trustee Powers.** The provisions of the trust that contain the Trustees powers are attached as Schedule A to the Certificate of Trust.
9. **Waiver of Claim.** The Grantors and Trustees waive any action against any person or organization that relies on the Certificate of Trust, and they shall be held harmless for any resulting loss or liability from such reliance.
10. **Validity of Copies of The Certification.** A copy of the Certificate of Trust shall be as valid as an original copy for funding the trust or for any other reason.
11. **Actions by Trustees.** While the above named Trustees are serving, either may act independently to bind the trust.

Grantor:

Trustee:

JURAT/ACKNOWLEDGMENT

STATE OF)
)
COUNTY)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of _____, 2023, by _____, who proved to me on the basis of satisfactory evidence to be the man who came before me

Witness/Notary:

CERTIFICATE OF TRUST

SCHEDULE A

TRUSTEE POWERS

Where is not otherwise prohibited by law the Trustee(s) shall have general common law powers over the trust estate herein, and may do anything any citizen may lawfully do in any state or country. Specifically, but not by way of limitation, they shall have all rights, authority and power as follows:

- a. To make a loan with interest to the Trust for any purpose and such transaction shall be entered as a first lien against the Trust Estate which must be repaid, as long as the transaction is recorded in the minutes of the Trust.
- b. To appoint Secondary Trustees and shall increase or decrease the number of Trustees as needed to manage the affairs of the Trust.
- c. To appoint a First Secretary, whose sole duties and powers shall be to serve as a Protector of the interests of the Beneficiaries hereof. The First Secretary shall have the power to remove any Secondary Trustee, upon written notice, so long as said First Secretary shall, appoint a qualified Successor-Trustee, who shall take office at the time of the removal of the removed Successor-Trustee.
- d. To compromise or abandon any claims arising out of. in favor of. or against the company and its trust estate, and the Trustees' good faith decision in that regard shall be binding and conclusive on all parties.
- e. To manage, invest and reinvest the trust estate, or any part thereof, in any kind of property or venture which men of prudence, discretion and intelligence consider for their own account. without being restricted to investments which are ordinarily permitted by law or customarily used for trust funds, and without restrictions as to the duration of this Trust. Specifically included, but not by way of limitation, are real estate collectables. gems, art works, precious metals, corporate obligations of every kind, preferred and common stock, commodities, mutual funds and trust funds.
- f. To open, maintain, or close bank accounts as necessary to receive and hold and/or to purchase or sell, in trust, any financial property for the use and benefit of the Beneficiaries.
- g. To sell at public or private sale for cash, credit, or both, and upon such terms and conditions as the Trustees may deem proper.
- h. To sell, grant, convey, mortgage, option, rent, lease or pledge all trust estate assets~. real. personal or mixed. in such a manner as deemed appropriate.
- i. To borrow on or encumber the trust estate without restriction, and to make loans with or without security. All borrowed funds shall immediately become a part of the trust estate.
- j. To allocate capital gains and/or dividends to trust principal as may be deemed appropriate or advantageous to the trust estate.
- k. To register company property in the name of the company, a fictitious trade name of the company, a Trustee or nominee so long as company ownership of such property can be clearly demonstrated.
- l. To make distributions in cash or in kind and to assign values to such property according to the Trustees' best judgment.

- m. To accept additions to the trust estate by deed, will, assignment, exchange, gift, grant, insurance proceeds or any other methods deemed acceptable to the Trustees. The Trustees are further authorized to honor any buy-sell agreements extant as to any property or interest held in trust.
- n. To elect and remunerate officers from the Board or elsewhere as deemed appropriate or expedient. To hire and remunerate employees, agents or contractors. To incur and pay the ordinary and necessary expenses of administration, including, but not limited to, legal fees, accountant's fees, Trustee fees, brokerage fees, consulting fees and the like, and to allocate all the expenses and receipts between principal and income as the Trustee shall deem proper.
- o. To give proxies, to deposit securities with and transfer title to committees representing securities holders and to participate in voting trusts, reorganizations and other transactions involving the common interest of security holders.
- p. To open margin accounts with securities firms and commodities traders and to buy, write or trade in options, commodities, and to make short sales. The Trustees shall be empowered to hold securities in their own names, the name of a nominee, in street name, or unregistered in such condition that ownership will pass. The Trustees shall incur no liability to the company for any loss. Further, any securities firm or commodities trader may rely on this document and the trust provisions herein in respect of a Trustee authority without making further inquiry.
- q. To hold, manage and operate any company property, or business or enterprise. The profits and losses, if any therefrom, shall be chargeable respectively to the trust estate.
- r. To pay all taxes out of the trust estate where taxes are required by law, and to have complete discretion, power and authority to make any decisions or elections that would effectively minimize such taxes.
- s. The Trustee may expressly delegate one or more of their powers to any other person or persons as may be deemed expedient for the management of company affairs, and may revoke such delegation at any time by written notice delivered to such persons.
- t. The Trustees by a majority vote, may change the domicile of the company with or without cause if they deem such change will protect or benefit the trust estate.
- u. The Trustees, by unanimous vote, may make amendments to this contract and declaration, and take such other consequential actions as; they deem necessary or appropriate to protect the integrity of the Trust and to insure the Trust will continue to function and be administered in the best interest of certificate holders and in the manner intended.
- v. The Trustees, by majority vote, may at any time and at their sole discretion wind up company affairs, terminate this Trust and make distributions of the trust estate to certificate holders as provided herein.

ADMINISTRATIVE CONTACT INFORMATION

Successor Trustee:

NAME:

ADDRESS:

PHONE:

Co-Trustee:

NAME:

ADDRESS:

PHONE:

Trust Protector:

NAME:

ADDRESS:

PHONE: